IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

Applicant / Inventor:	Reinaldo Javier Aguiar Marcano
Application Number:	19/639,271
Filing Date:	April 5, 2026
Confirmation Number:	6826
Art Unit / Examiner:	TC 2100 / ADD2AFC
Customer Number:	226458
Entity Status:	SMALL ENTITY (37 CFR § 1.27)
Title of Invention:	HIGH-RADIX MASS STORAGE SYSTEM

APPLICANT'S SUPPLEMENTAL RESPONSE TO PRE-EXAMINATION NOTICES
(37 CFR §§ 1.111, 1.121, 1.125; MPEP § 608.01(q))
(SUPPLEMENTING RESPONSES ENTERED JULY 31, 2026 AND AUGUST 20, 2026)

**(PETITION FOR THREE-MONTH EXTENSION OF TIME TO OCTOBER 13, 2026,
CONDITIONAL REQUEST FOR SIX-MONTH SUSPENSION OF ACTION UNDER 37 CFR § 1.103(a)
WITH CONCURRENT REMITTANCE OF $60.00 PROCESSING FEE,
SUBSTITUTE SPECIFICATION WITH NO NEW MATTER CERTIFICATION,
MARKED-UP COPY UNDER 37 CFR § 1.125(c),
REPLACEMENT CLAIMS, REPLACEMENT ABSTRACT, FORMAL STANDALONE DRAWINGS,
PERFECTED AIA INVENTOR DECLARATION,
REQUEST FOR DEPOSIT ALLOCATION UNDER 37 CFR § 1.25(b),
AND RESPECTFUL REQUEST FOR CLERICAL RE-INDEXING OF AUGUST 20, 2026 IFW ENTRY)**

Mail Stop Missing Parts
Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

In responsive supplemental follow-up to the *Notice to File Missing Parts* mailed May 13, 2026, the *Notice of Incomplete Reply* mailed August 31, 2026, and supplementing the prior responses

entered July 31, 2026 and August 20, 2026, the pro se Applicant, Reinaldo Javier Aguiar Marcano, respectfully submits this comprehensive Supplemental Formalities Response.

Statutory Timeliness & Federal Holiday Rollover (35 U.S.C. § 21 & 37 CFR § 1.7(a)): Applicant respectfully notes that under the three-month extension of time petitioned for herein under 37 CFR § 1.136(a), the reply period running from the two-month deadline of July 13, 2026 extends to October 13, 2026 (as October 12, 2026 is Columbus Day, an official Federal Holiday, rolling forward to Tuesday, October 13, 2026 pursuant to 35 U.S.C. § 21 and 37 CFR § 1.7(a)). This supplemental filing is therefore fully timely.

Operative Superseding Instrument Standard:
Applicant expressly notes that in the event of any discrepancy or conflict between the technical instruments submitted herein and prior versions filed, the perfected instruments contained within this October 12, 2026 Supplemental Response submission shall strictly control and **supersede** prior filings in all respects.

I. WRITTEN ASSERTION OF SMALL ENTITY STATUS (37 CFR § 1.27)

Applicant hereby formally asserts and reaffirms entitlement to **Small Entity status** under 37 CFR § 1.27 and 35 U.S.C. § 123. All statutory fees are computed strictly under the Small Entity fee schedule.

II. CURING OF FORMALITY DEFECTS & COMPLETE ITEMIZED SUBMISSIONS

To pre-emptively cure every latent technical and formal informality before the application is assigned to an examining art unit, including curing the specification defect cited in the Notice of Incomplete Reply (removing embedded diagrams on pages 6–7) and supplying formal standalone drawings, Applicant concurrently submits the following perfected instruments in this single, unified 9-document electronic envelope:

1. **Formal Certification of No New Matter (37 CFR § 1.125(b) & MPEP § 608.01(q)):** Applicant hereby formally certifies pursuant to 37 CFR § 1.125(b) and MPEP § 608.01(q) that the accompanying Substitute Specification contains **NO NEW MATTER**. The changes incorporated into the Substitute Specification relative to the as-filed specification are strictly limited to the excision of embedded graphic images (relocated to formal standalone drawing

sheets under 37 CFR § 1.84), excision of embedded abstract and claims (relocated to standalone sheets under 37 CFR §§ 1.72(b), 1.75(h)), enforcement of strict double line spacing under 37 CFR § 1.52(b)(2)(i), and uniform flush-left paragraph formatting.

2. **Standalone Substitute Specification (37 CFR § 1.125(c)) [Patent Center Description: "Specification"]:**
   Applicant submits both a **Clean Copy of the Substitute Specification** and the mandatory **Marked-Up Copy** (showing all excisions in strike-through under 37 CFR § 1.121(b)(1)(iii)), ensuring the specification contains purely technical disclosure text without extraneous metadata or procedural blocks, curing the defect under MPEP Form Paragraph 6.28.02.

3. **Standalone Formal Drawing Sheets (37 CFR § 1.84) [Patent Center Description: "Drawings - only black and white line drawings"]:**
   Applicant submits standalone formal drawing sheets containing **FIG. 1 and FIG. 2** across Sheets 1–2. Each sheet bears the mandatory phrase **"Replacement Sheet"** in the top margin pursuant to 37 CFR § 1.121(d).

4. **Perfected Universal AIA Inventor Declaration (35 U.S.C. § 115, 37 CFR § 1.63) [Patent Center Description: "Oath or Declaration filed"]:**
   Applicant submits an executed, perfected AIA Inventor Declaration satisfying all statutory requirements under 35 U.S.C. § 115, 37 CFR § 1.63, and MPEP § 605, including the mandatory authorization averment, complete legal domicile, and criminal liability warning under 18 U.S.C. § 1001.

5. **Standalone Replacement Claims (37 CFR § 1.75(h)) [Patent Center Description: "Claims"]:**
   Applicant submits standalone Replacement Claims 1–8, commencing on a separate sheet in strict double spacing, under the pure statutory heading "CLAIMS", fully preserving the nested itemized sub-clause structure on Claims 1, 2, and 6.

6. **Standalone Replacement Abstract (37 CFR § 1.72(b)) [Patent Center Description: "Abstract"]:**
   Applicant submits a standalone Replacement Abstract, commencing on a separate sheet in strict double spacing, under the pure statutory heading "ABSTRACT OF THE DISCLOSURE".

7. **Supplemental Petition for Extension of Time (37 CFR § 1.136(a)) [Patent Center Description: "Extension of Time"]:**
   Applicant submits a Supplemental Petition for Extension of Time under 37 CFR § 1.136(a), formally tendering payment for a Three-Month Extension via deposit credit allocation to secure statutory timeliness through October 13, 2026.

8. **Supplemental Request for Six-Month Suspension (37 CFR § 1.103(a)) [Patent Center Description: "Letter Requesting Suspension of Action"]:**

Applicant submits a Supplemental Request for Suspension of Action under 37 CFR § 1.103(a), accompanied by concurrent payment of the $60.00 statutory fee (Fee Code 2830), requesting that prosecution be suspended for six (6) months upon completion of pre-examination processing.

III. RESPECTFUL REQUEST FOR CLERICAL RE-INDEXING OF IMAGE FILE WRAPPER DOCUMENT CODE (AUGUST 20, 2026 SUBMISSION)

Applicant respectfully invites the attention of the Office of Patent Application Processing (OPAP) to an administrative document indexing anomaly appearing on the Image File Wrapper for this application regarding the filings entered on August 20, 2026:

1. **Official Electronic Acknowledgement Receipt Record:** Official USPTO records confirm that on August 20, 2026 at 07:49:15 AM ET (Patent Center Electronic Acknowledgement Receipt No. 80546016), Applicant timely submitted three distinct documents:
   - A **239-page instrument**
     (file: `19639271-RESPONSE-TO-INCOMPLETE-REPLY-AUG20.pdf`),
     explicitly characterized on the Electronic Acknowledgement Receipt under the document description **"Applicant Response to Pre-Exam Formalities Notice"**;
   - A **1-page instrument**
     (file: `19639271-DECLARATION.pdf`),
     characterized under the description **"Oath or Declaration filed"**; and
   - A **115-page instrument**
     (file: `19639271-PETITION-1183-AUG20.pdf`),
     characterized under the description **"Petition for review by the Office of Petitions"**.
2. **Image File Wrapper Indexing Discrepancy:** While the 1-page declaration and the 115-page petition were correctly indexed, the **239-page responsive submission** was entered into the Image File Wrapper under the document description and code **"Oath or Declaration filed" (Code: OATH)**, creating a duplicate OATH entry alongside the 1-page declaration.
3. **Administrative Impact, Clerical Re-Indexing, and New Operative Declaration:** The indexing of the 239-page responsive paper under document code OATH creates procedural ambiguity and the risk that Applicant's substantive responsive arguments and technical submissions of August 20, 2026 may not be routed or reviewed in a timely fashion by the examining corps, potentially causing unintended processing delays.

   Accordingly:

- In accordance with the official Electronic Acknowledgement Receipt No. 80546016, Applicant respectfully requests that OPAP update the Image File Wrapper indexing metadata by re-indexing the **239-page instrument** under its true characterized code: **PEFR** (*Applicant Response to Pre-Exam Formalities Notice*).
- Furthermore, to eliminate any room for error regarding formal declaration compliance, Applicant submits a brand new, fully executed, and perfected **AIA Inventor's Declaration** concurrently herewith (Document 04), which serves as the operative declaration of record for this application and supersedes prior declaration filings.

Applicant tenders this request in a spirit of administrative cooperation to ensure absolute docket integrity and avoid potential processing delays.

IV. STATUTORY FEE RECONCILIATION, REQUEST FOR DEPOSIT ALLOCATION (37 CFR § 1.25(b)), AND MACRO PORTFOLIO EQUITY

A. Remittance of Statutory Suspension Processing Fee

Applicant remits **$60.00** concurrently herewith via Patent Center point-of-sale checkout for the **Suspension Processing Fee** under 37 CFR § 1.17(i) (Fee Code 2830, Small Entity), fully satisfying all fee requirements for the accompanying Request for Suspension.

B. Respectful Request for Allocation of Unapplied Deposit Funds (37 CFR § 1.25(b) & MPEP § 509)

Official Office records (specifically the Notice of Incomplete Reply) confirm that the Office of Finance currently holds **$166.00 in unapplied funds on deposit** under this application serial number.

Pursuant to 37 CFR § 1.22(b) and MPEP § 509, Applicant respectfully requests that the Office allocate this existing **$166.00 unapplied deposit credit** directly toward the Three-Month Extension of Time fee obligation under 37 CFR § 1.136(a) (Fee Code 2253). By formally specifying this application, payment has been legally tendered under 37 CFR § 1.136(a)(2) sufficient to maintain procedural timeliness.

C. Request for Administrative Notice of Fee Deficiency (37 CFR § 1.53(f)) & Macro Portfolio Equity

After applying the $166.00 unapplied credit against the $636.00 extension fee, the net extension delta is **$470.00**. Combined with the remaining base fee balance ($358.00 base fee deficiency), Applicant respectfully requests that the Office assess these balances via a formal **Notice of Fee Deficiency** pursuant to 37 CFR § 1.53(f) and MPEP § 506.

Applicant respectfully notes the equitable context of the broader portfolio: across Applicant's 102 patent applications, the USPTO Office of Finance currently holds over **$32,758.00** in unapplied pro se deposit funds detained by the agency without interest. This macro capital reserve provides substantial equitable security while pre-examination formalities are perfected and deficiency notices are processed.

V. CONCLUSION

All formal and technical instruments having been fully perfected herein, statutory timeliness secured through October 13, 2026, the suspension fee remitted, and clerical re-indexing of the August 20, 2026 response requested, Applicant respectfully requests that the Office of Patent Application Processing (OPAP) accept this response as timely and complete, issue an administrative Notice of Fee Deficiency under 37 CFR § 1.53(f) for the remaining balances, and advance Application No. 19/639,271 to an examining art unit.

Respectfully submitted,

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